

[REDACTED] misleading
« back and incomplete information."

8 In her Third Amended Complaint, Judge asserted four claims for relief. In Count [REDACTED] and Dr. Feigin violated the Equal Protection Clause of the Fourteenth Amendment.

[REDACTED] their constitutional duty by discriminating against Rebecca Judge on the basis of her race and the race of her deceased brother Gary Weems and his wife Denise Weems," in that they failed to: (1) notify Weems's wife and next of kin of Weems's death; (2) deliver in a timely fashion to Weems's wife and next of kin Weems's personal belongings; (3) carefully inquire into the cause and circumstances of Gary Weems's death; (4) respect the right of Gary Weems's wife and next of kin to dispose of his body as they wished; (5) respond truthfully to requests for information regarding Gary Weems's death made by members of Gary Weems's family; (6) investigate the circumstances of Gary Weems's death with due regard to the possibility that the death may have resulted from criminal acts; (7) pursue carefully evidence of suspicious circumstances regarding Gary Weems's death; and (8) notify the district attorney's office of evidence warranting the attention of that office.

9 Judge alleged "on [REDACTED] not have been characterized by the gross deficiencies with which it was characterized had [she], her deceased brother Gary Weems and his wife Denise Weems been White, instead of Black." Judge further alleged that these circumstances

10 were part and parcel of a pattern and practice, pursuant to which one level of care is used by defendants in the investigation of the deaths of White persons, and another, inferior level of care is used by defendants in the investigation of the death of Black persons, particularly if the Black persons in question are ostensibly of a low economic class and the cause of death is ostensibly a drug overdose.

11 [REDACTED] and practice" allegation, Judge cited the case of Kasha Blount, a black woman from Dorchester, Massachusetts, who died in February 1990 under allegedly suspicious circumstances. According to newspaper articles appended to the Third Amended Complaint, a man was tried in the Blount case on homicide charges, but was acquitted by a jury. The articles indicate that Dr. Feigin was the medical examiner in the Blount case. Relying upon statements made by Blount's mother to the press, Judge alleges that Dr. Feigin failed to properly investigate Ms. Blount's death because she was black.

12 In Count II, Judge alleged that the City of Lowell had exhibited "deliberate [REDACTED] a custom and policy that prohibited discrimination on the basis of race in the discharge of the legal obligations at issue," [REDACTED] such a way as to ensure that they would not discriminate on the basis of race in the discharge of the legal obligations at issue." In Counts III and IV, Judge alleged state law claims for intentional infliction of emotional distress against Dr. Feigin and Officer Chevalier.

13 After Judge filed her initial complaint, she amended it three times. The defendants filed motions to dismiss the Second Amended Complaint pursuant to [REDACTED] scheduling conference held after those motions were filed, the court expressed skepticism that the Second Amended Complaint set forth sufficient factual support for Judge's allegation of racial animus. Nevertheless, the court denied the motions to dismiss without prejudice to their being renewed at a later date. Judge filed a Third Amended Complaint, in which she elaborated on the specific alleged

Leatherman, the Court rejected a heightened pleading standard imposed by the Fifth Circuit in cases alleging municipal liability under section 1983. The case arose out of complaints filed against two municipalities for their officers' forcible entry into residences the officers suspected were fronts for drug-manufacturing operations. The district court and the Fifth Circuit, both applying the latter's heightened pleading standard in civil rights cases, held that the complaints should be dismissed. The Supreme Court reversed.

19 [redacted] to square the 'heightened pleading standard' applied by the Fifth Circuit ... with the liberal system of 'notice pleading' set up by the Federal Rules." [redacted] Leatherman argued that a heightened pleading requirement was necessary because [redacted] more relaxed pleading requirement would subject municipalities to expensive and time consuming discovery in every § 1983 case, eviscerating their immunity from suit and disrupting municipal functions." Id. The Supreme Court observed, [redacted] various government officials, municipalities do not enjoy immunity from suit--either absolute or qualified," id., suggesting the result might be different in individual capacity actions against government officials. The Court [redacted] immunity jurisprudence would require a heightened pleading in cases involving individual government officials." Id.

20 Judge argues that in Crawford-El, the Court answered that question in the negative. We are not so sure, but, in any case, immunity was not (as the Supreme Court pointed out) the key issue there, any more than it was here. In Crawford-El, the Supreme Court rejected the D.C. Circuit's requirement that a plaintiff bringing a claim under section 1983 against a government official in his or her individual capacity, regarding which the official's improper motive is a necessary element, adduce "clear and convincing evidence" of such motive in order to defeat a motion [redacted] heightened evidentiary requirement to protect government officials, in a doubtful case, from the burdens of discovery and trial. The Supreme Court held that the D.C. Circuit went too far in increasing the plaintiff's evidentiary burden. The Court continued, however, with strong dicta dealing squarely with the issue now before [redacted] potential problem that troubled the court, [redacted] appropriate to add a few words on some of the existing procedures available to federal trial judges in handling claims that involve examination of an official's state of mind." Id. at [redacted]

21 [w]hen a plaintiff files a complaint against a public official alleging a claim that requires proof of wrongful motive, the trial court must exercise its discretion in a way that protects the substance of the qualified immunity defense. It must exercise its discretion so that officials are not subjected to unnecessary and burdensome discovery or trial proceedings.

22 Id.

23 One way of accomplishing this, the Court went on, was for trial courts, prior to permitting any discovery, to use existing procedures, such as ordering a plaintiff to reply to a defendant's answer⁷ or granting defendant's motion for a more definite statement⁸, to require that plaintiffs allege specific facts supporting an allegation of wrongful motive. Id. at 1596. The Supreme Court then stated, in unequivocal [redacted] trial] court may insist that the plaintiff 'put forward specific, nonconclusory factual allegations' that establish improper motive causing cognizable injury in order to survive a